

25VECP00628 25VECP00628

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-08-03

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Case Number: 25VECP00628 Hearing Date: August 3, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Vox

Funding LLC,

Plaintiffs,

v.

MP

Construction Inc., et al.

Defendants.

Case Number Department

25VECP00628 107

COURT'S [TENTATIVE]

ORDER RE:

Application for Order for Appearance

and Examination

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant

I.

BACKGROUND

On November 18, 2025, Plaintiff Vox Funding LLC (“Plaintiff”) filed an application for entry of judgment on sister-state judgment against Defendants MP Construction Inc, Adrian Aguilar, and Mayra Flores.

On April 24, 2026, Plaintiff filed an application and order for appearance and examination (the “Application”). As of July 28, 2026, no opposition has been filed.

II.

LEGAL

STANDARD

“The judgment creditor may apply to the proper court for an order requiring the judgment debtor to appear before the court, or before a referee appointed by the court, at a time and place specified in the order, to furnish information to aid in enforcement of the money judgment.” (Code Civ. Proc., § 708.110, subd. (a).)

“If the judgment creditor has not caused the judgment debtor to be examined under this section during the preceding 120 days, the court shall make the order upon ex parte application of the judgment creditor.” (Code Civ. Proc., § 708.110, subd. (b).)

“If the judgment creditor has caused the judgment debtor to be examined under this section during the preceding 120 days, the court shall make the order if the judgment creditor by affidavit or otherwise shows good cause for the order. The application shall be made on noticed motion if the court so directs or a court

rule so requires. Otherwise, it may be made ex parte.” (Code Civ. Proc., § 708.110, subd. (c).)

“Except as provided in section 708.111, the order shall contain the following statement in 14-point boldface type if printed or in capital letters if typed: ‘NOTICE TO JUDGMENT DEBTOR. If you fail to appear at the time and place specified in this order, you may be subject to arrest and punishment for contempt of court and the court may make an order requiring you to pay the reasonable attorney’s fees incurred by the judgment creditor in this proceeding.’” (Code Civ. Proc., § 708.110, subd. (e).)

Per
Local Rule 3.221, subdivisions (a) and (b):

(a)
Application.

(1)
A natural person must be named on the order to appear for examination proceedings on behalf of a corporation, company, partnership or other business entity, unless the court otherwise orders for good cause shown in a written declaration.

(2)
The clerk will give notice of the date and time for hearing.

(3)
A copy of the judgment must be provided with the application.

(4)
The application must be filed in the district in which the judgment was entered. If the courthouse where judgment was entered provides for judgment debtor’s proceedings, the application for a debtor’s proceeding must be filed in that courthouse. If not, the application must be filed in the courthouse where the district’s supervising judge is located.

(b)
Proof of Service.

(1)

After service of the notice and application, proof of service of an order issued pursuant to Code of Civil Procedure sections 708.110, 708.120, or 708.130 must be filed directly with the clerk in the assigned department no later than 4:00 p.m., three court days before the hearing date, unless otherwise ordered by the court.

(2)

Failure to file proofs of service will result in the proceeding being taken off calendar without costs awarded to the applicant. No further hearing will be scheduled earlier than 120 days from the date of the originally scheduled hearing, except for good cause shown in a written declaration.

(Super. Ct. L.A. County, Local
Rules, rule 3.221(a)-(b).)

“The

judgment creditor shall personally serve a copy of the order on the judgment debtor not less than 30 days before the date set for the examination. Service shall be made in the manner specified in Section 415.10. Service of the order creates a lien on the personal property of the judgment debtor for a period of one year from the date of the order unless extended or sooner terminated by the court.” (Code Civ. Proc., § 708.110, subd. (d).)

III.

DISCUSSION

Plaintiff used Judicial Council

Form AT-138/EJ-125, which includes the statutorily required notice.

(Application p. 2.) The Application is directed to Defendant Mayra Flores (“Defendant”). (Application p. 1.) Defendant has not been examined within the past 120 days. (Application p. 2.)

Plaintiff did not submit a copy of

the judgment with the Application, but the judgment based on sister-state judgment is on file with the court. (Judgment filed 11/18/25.)

Plaintiff filed a proof of service

showing Plaintiff served Defendant with the Application by personal service on May 11, 2026. (Proof of Service filed 05/14/26.) May 11, 2026 is more than

thirty days before August 3, 2026. Thus, Plaintiff timely served Defendant with the Application.

IV.

CONCLUSION

For the foregoing reasons, the Application is granted.

Dated: August 3,
2026 _____ Hon. Eric Harmon

Judge of the Superior Court